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Case Number: 22PSCV02280 Hearing Date: August 19, 2026 Dept: 6

CASE

NAME: Interinsurance

Exchange of the Automobile Club v. Oscar Tinjaca, etc.

Plaintiff

Interinsurance Exchange of the Automobile Club's Motion to Enforce Settlement Agreement and Enter Judgment Against Defendant Oscar Tinjaca

TENTATIVE

RULING

The Court GRANTS Plaintiff Interinsurance Exchange of the Automobile Club's Motion to Enforce Settlement Agreement and Enter Judgment Against Defendant Oscar Tinjaca. The Court will sign the proposed judgment.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a subrogation action. On December 2, 2022, plaintiff Interinsurance Exchange of the Automobile Club (Plaintiff) filed this action against defendants Oscar Tinjaca (Tinjaca), Torres Jr Trucking Inc (collectively, Defendants), and Does 1 through 10, alleging the sole cause of action for subrogation.

On or about April 9, 2024, Plaintiff and Tinjaca entered into a stipulation settling this action. On April 12, 2024, per stipulation between Plaintiff and Tinjaca, the Court dismissed this action

without prejudice and with the Court retaining jurisdiction under Code of Civil Procedure section 664.6.

On July 20, 2026, Plaintiff moved to enforce the settlement agreement and enter judgment against Defendant Oscar Tinjaca. Tinjaca did not oppose the Motion.

LEGAL STANDARD

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

“A party may file a motion or other document pertaining to the settlement, including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.” (Code Civ. Proc., § 664.6, subd. (f)(1).)

DISCUSSION

Plaintiff seeks to enter judgment against Defendant Tinjaca in the amount of \$35,001.15, including \$25,345.31 in principal plus \$9,138.20 in interest from December 2, 2022, through July 10, 2026, plus costs of \$517.64. Plaintiff contends Defendant defaulted on the terms of the parties' April 12, 2024 stipulation (the Stipulation) by failing to make any payments thereunder.

The Court finds Plaintiff's Motion persuasive. The Court retained jurisdiction to enforce the Stipulation under Code of Civil Procedure section

664.6. (Order for Court to Retain Jurisdiction an [sic] Enter Dismissal (4/12/24).) The Stipulation expressly provides that Tinjaca was to make monthly installment payments totaling \$20,000.00 as a negotiated settlement amount and that Plaintiff could obtain entry of judgment against Tinjaca in the amount of \$25,345.31 plus interest from December 2, 2022, and court costs, less credit for all payments made before default, if Tinjaca failed to make the agreed upon installment payments. (Stipulation (4/12/24), ¶¶ 1-5; Creditors Adjustment Bureau, Inc. v. Imani (2022) 82 Cal.App.5th 131, 135 [stipulation for entry of judgment on full amount not a penalty where defendant acknowledged the full amount due].) Plaintiff's evidence shows that Tinjaca made no payments. (Tapper Decl., ¶ 4.) Plaintiff is therefore entitled to entry of judgment under Code of Civil Procedure section 664.6. The Court further finds Plaintiff's prejudgment interest calculation correct. Plaintiff did not itemize its court costs, but the Court assumes these are correct given Tinjaca's lack of opposition. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].)

Based on the foregoing, the Court GRANTS the Motion. The Court will sign the proposed judgment.

CONCLUSION

The Court GRANTS Plaintiff Interinsurance Exchange of the Automobile Club's Motion to Enforce Settlement Agreement and Enter Judgment Against Defendant Oscar Tinjaca. The Court will sign the proposed judgment.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.